



CHAPTER lxxv.

An Act to confer further borrowing powers upon the mayor aldermen and citizens of the city of Wakefield and for other purposes.

A.D. 1930.

[4th June 1930.]

WHEREAS by Part V of the Public Health Acts Amendment Act 1890 the Stock Regulations 1891 to 1921 and the Wakefield Stock Order 1929 the mayor aldermen and citizens of the city of Wakefield (in this Act referred to as "the Corporation") were empowered to raise sums amounting in the aggregate to seven hundred and fifty thousand pounds authorised by certain statutory borrowing powers vested in them by the creation and issue of stock to be designated "Wakefield Corporation four and a half per cent. redeemable stock 1949-1959":

And whereas in pursuance of the said Act regulations and order the Corporation by resolution of the council of the said city passed on the eighth day of January nineteen hundred and twenty-nine duly created stock to an amount not exceeding seven hundred and fifty thousand pounds and Corporation and General Securities Limited (in this Act referred to as "the company") were authorised to invite applications for the stock upon terms agreed between the company and the Corporation:

And whereas the company have failed to account for certain sums received by them in connection with the issue of the stock or otherwise payable by them to

A.D. 1930. the Corporation and an order has been made by the
— High Court for the compulsory winding up of the
company :

And whereas it is expedient to empower the Corporation to borrow a sum equal to the amount which was due to them from the company and which the Corporation are unable to recover and such further sums costs and expenses as are hereinafter mentioned :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Wakefield Corporation Act 1930.

Power to borrow. 2.—(1) The Corporation may independently of any other borrowing power borrow at interest—

- (a) the sum of three hundred and twenty-four thousand six hundred and eighty-five pounds;
- (b) the sum of eight thousand five hundred and thirty-three pounds being the sum requisite to pay interest on the said sum of three hundred and twenty-four thousand six hundred and eighty-five pounds to the twenty-fourth day of September nineteen hundred and twenty-nine together with the sum requisite to pay interest on the last mentioned sum at the rate of four and three quarters per centum per annum from the said twenty-fourth day of September to the date of borrowing;
- (c) with the consent of the Minister of Health such further sum (if any) as the Corporation may be or become liable to pay in connection with or consequent on the issue of the said stock;
- (d) the sum requisite for paying the costs charges and expenses of this Act.

A.D. 1930. — the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Wakefield Corporation Market Act 1900—

Section 31 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 32 (Mode of raising money);

Section 35 (Mode of payment off of money borrowed);

Section 36 (Sinking fund);

Section 37 (Protection of lender from inquiry);

Section 38 (Corporation not to regard trusts);

Section 39 (Appointment of receiver);

Section 48 (Inquiries by Local Government Board)
Provided that subsection (2) of that section shall have effect as if the words "five guineas" were substituted for the words "three guineas" therein.

Wakefield Corporation Act 1909—

Section 21 (Power to re-borrow).

Wakefield Corporation Act 1916—

Section 49 (Audit of accounts);

Section 51 (Returns to Local Government Board as to sinking fund).

Costs of
Act.

5. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the city or out of money to be borrowed under this Act for that purpose.

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(2) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the general rate fund and the general rate of the city. A.D. 1930.

(3) The Corporation shall pay off all money borrowed by them under this Act within the following periods (namely):—

(a) As to money borrowed under paragraph (a) of subsection (1) of this section within thirty years from the thirty-first day of March nineteen hundred and thirty;

(b) As to money borrowed under paragraph (c) of that subsection within such period as may be prescribed by the Minister of Health;

(c) As to money borrowed under paragraphs (b) and (d) of that subsection within five years from the passing of this Act.

(4) The provisions of this section prescribing the fund or rate which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by section 24 (Power to use one form of mortgage for all purposes) of the Wakefield Corporation Act 1909.

(5) All money borrowed by the Corporation under the powers of this Act shall be applied to the purposes which are referred to in the Wakefield Stock Order 1929 or to the purposes for which it is authorised by this Act to be borrowed.

3. Any money received by the Corporation in reduction of or by way of compensation for the loss incurred by them in connection with the issue of the said stock shall be applied in or towards the extinguishment of the loan raised by the Corporation under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health. Application of money received from company.

4. The following provisions of the Wakefield Corporation Market Act 1900 the Wakefield Corporation Act 1909 and the Wakefield Corporation Act 1916 shall with the necessary modifications extend and apply to Application of financial provisions of Acts of 1900 1909 and 1916.